

**REGIONAL TRANSPORT OFFICE (RTO)**  
**KOLKATA ADMINISTRATIVE DECISION – APPEAL**

**Process:** WB-2026/1923 **Applicant:** Sourav Das **Date:** 21/06/2026

**Subject:** Appeal against e-challan for alleged use of a mobile device while driving.

The present administrative appeal is filed against the penalty imposed for an alleged traffic violation (use of a mobile device while driving) under the Motor Vehicles Act, 1988. The applicant argues that their mobile device was securely mounted on the dashboard for navigation purposes, and the camera mistakenly captured them scratching the side of their face, misinterpreting it as holding a phone.

After reviewing the merits, the submitted documents, and the applicable traffic regulations, the competent authority passes the following decision.

**Decision: Approved.** It has been established that the primary evidentiary photograph is of low resolution, making it difficult to conclusively differentiate between a hand-held device and a resting hand. Therefore, the appeal is temporarily deferred pending a high-resolution enhancement and secondary review of the traffic camera footage by the technical cell.

Publish. Notify the applicant. Archive after necessary actions.

**Competent Administrative Authority**